

Delaware County Council Meeting May 28 2024

Meeting Metadata	Details
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Delaware County Council Meeting Summary

Meeting Date: May 28, 2024

Body: Delaware County Council

1. Pre-Hearing & Committee Work Sessions

- **Session Type & Topic:** [00:01:32](#) Statutory Public Hearing regarding the Kaleidoscope Kids tax abatement.
- **Summary of Discussion:** The presiding officer opened the floor for public testimony specifically concerning the Kaleidoscope Kids tax abatement. No members of the public came forward to speak. Hearing no comments, the presiding officer closed the public hearing portion of the session.

2. Meeting Identification & Attendance

- **Call to Order:** The regular monthly meeting of the Delaware County Council was called to order following the opening public hearing.
- **Attendance:** All council members were present. (Individual roll call confirmed attendance of members Flankin, Hughes, Cats, Margo, Webb, Wyatt, Chance, and Piper). Presiding officer: Council President Piper.

3. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance led by Emily, followed by roll call and instructions for submitting public questions to CountyCouncil@co.delaware.in.us.
- **Agenda Amendments:** Council President Piper moved to amend the agenda to add Resolution 2024-009 (Kaleidoscope properties confirming resolution) and move Sheriff Tony Skinner's DROP program resolution (d-011) down to the ordinances and resolutions section.
 - **Action & Vote: Approved by Voice Vote** (subsequently followed by a formal roll call: Passed Unanimously).
- **Approval of Minutes:**
 - **00:04:03** A motion was made to table the April 23rd meeting minutes due to a perceived lack of detail regarding discussions. A debate ensued regarding minimalist vs. detailed minutes, and the legal floor set by the Public Access Counselor (which requires date, time, attendance, general substance of matters discussed, and roll call votes).
 - **Action & Vote:** Motion to table failed for lack of a majority (Roll Call: 3 Yes, 4 No, 1 Abstain).
 - **00:18:02** A subsequent motion was made to approve the April 23rd minutes as presented.
 - **Action & Vote: Approved** (Roll Call: 4 Yes, 3 No, 1 Abstain).

4. Substantive Business & Board Action

A. Financial Transfers & Appropriations

The council reviewed a series of routine backfilling transfers and budget appropriations. All items below were vetted and received favorable recommendations from the Finance Committee (noted as a record-setting 16-minute committee meeting). Unless otherwise noted, individual transfers resulted in a net-zero change.

- **00:19:05 County General - Communications (911):** Transfer between Communication Tech lines.
 - **Action & Vote:** Approved by roll call (Passed Unanimously).
- **00:20:00 Sheriff Department:** Transfers involving Corporal and Sergeant lines.
 - **Action & Vote:** Approved by roll call (Passed Unanimously).
- **00:20:53 Jail:** Correctional Officer line transfers.
 - **Action & Vote:** Approved by roll call (Passed Unanimously).
- **00:21:26 Auditor:** Tax Sale Plat Room Deputy line transfers.

- **Action & Vote:** Approved by roll call (Passed Unanimously).
- **00:22:07 EMS:** Advanced EMT line transfers.
 - **Discussion:** Auditor noted an adjustment due to a final payout not initially calculated, changing the specific line breakdown while maintaining a net-zero transfer.
 - **Action & Vote:** Amendment to adjusted amounts **Approved by Voice/Roll Call**, followed by approval of amended transfer. **Approved** (Passed Unanimously).
- **00:24:21 Prosecutor:** Deputy Prosecutor line transfers.
 - **Action & Vote:** Approved by roll call (Passed Unanimously).
- **00:25:02 LIT Public Safety - Jail:** Correctional Officer line transfers.
 - **Action & Vote:** Approved by roll call (Passed Unanimously).
- **00:25:53 Fair and Expo (4911):** Transfer of \$3,000 for equipment (replacement of an old golf cart with a dump bed).
 - **Presenter:** Carrie D. (Fairboard)
 - **Action & Vote:** Approved by roll call (Passed Unanimously).
- **00:28:31 Bridge:** Equipment operator and truck driver line transfers.
 - **Discussion:** Noted a senior employee with 30 years stepping down to a truck driver role voluntarily, creating training opportunities.
 - **Action & Vote:** Approved by roll call (Passed Unanimously).
- **00:30:17 LIT Public Safety - Prosecutor:** Deputy Prosecutor line transfers.
 - **Action & Vote:** Approved by roll call (Passed Unanimously).
- **00:30:58 County General - Auditor:** Payroll Deputy and Tax Sale Plat Room exemption deputy transfers.
 - **Action & Vote:** Approved by roll call (Passed Unanimously).
- **00:32:24 Appropriations - County General / EMA:** Additional appropriation of \$241 for pagers and cell phones (unencumbered 2023 claim).
 - **Presenter:** Heidi Knuckles (Office Manager, EMA)
 - **Action & Vote:** Approved by roll call (Passed Unanimously).
- **00:33:21 Appropriations - Commissioners:** Institutional care / community corrections home detention program funding.
 - **Presenter:** Jane Miranda (Community Corrections)
 - **Discussion:** Originally requested \$424,000. Council members noted monthly averages of roughly \$53,000 and moved to reduce the appropriation to reflect actual math (\$375,000). Noted that this program is a cost-savings measure preventing higher daily jail expenses.
 - **Action & Vote:** Amendment to \$375,000 **Approved** (Passed Unanimously); Amended appropriation **Approved** (Passed Unanimously).
- **00:41:29 Appropriations - FRC Problem Solving Grant:** \$9,826 for health insurance coverage for juvenile problem-solving court staff.
 - **Presenter:** Emily Anderson (Court Administrator)
 - **Action & Vote:** Approved by roll call (Passed Unanimously).

- **00:43:06 Appropriations - Statewide 911:** \$64,000 for PSAP equipment.
 - **Action & Vote:** Approved by roll call (Passed Unanimously).
 - **00:43:47 Appropriations - Byrne Brothers Grant (High-Tech Crimes):** \$100,000 total across software, education, and construction.
 - **Action & Vote:** Approved by roll call (Passed Unanimously).
 - **00:44:38 Appropriations - High-Tech Crime Unit (1195):** \$38,618.27 for office supplies, operating supplies, and equipment from state payout.
 - **Action & Vote:** Approved by roll call (Passed Unanimously).
 - **00:45:19 Appropriations - CASA:** \$6,700 for machinery and equipment (computers/software).
 - **Action & Vote:** Approved by roll call (Passed Unanimously).
 - **00:45:52 Financial Transfers & Salary Ordinance Reductions:** Motion to approve financial transfers and amend salary ordinance with reductions.
 - **Action & Vote: Approved** (Passed Unanimously).
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B. Ordinances & Resolutions

- **00:46:18 Resolution 2024-009: Kaleidoscope Properties LLC (Confirming Resolution)**
 - **Sponsor / Presenter:** Council / Legal Counsel
 - **Deliberation Summary:** Discussion clarifying that this is the statutory confirming resolution following the initial economic revitalization area (ERA) designation made in March. Delays in publishing notice put the process behind schedule through no fault of the applicant.
 - **Item-Specific Public Input:** None.
 - **Action & Vote: Approved** (Roll Call: 7 Yes, 1 No [Webb]).
- **00:51:04 Resolution 2024-010: Kaleidoscope Properties LLC (Tax Abatement Approval)**
 - **Sponsor / Presenter:** Council / Legal Counsel
 - **Deliberation Summary:** Resolution approving the deduction of assessed value for real estate in the declared ERA. Debate occurred regarding the application being submitted after construction/planning commenced, with council members emphasizing the need for formal tax abatement guidelines to be established within 30 days.
 - **Item-Specific Public Input:** None.
 - **Action & Vote: Approved** (Roll Call: 6 Yes, 2 No [Webb, Hughes]).
- **00:56:50 Resolution 2024-011: Sheriff's Department DROP Program (Deferred Retirement Option Plan)**
 - **Sponsor / Presenter:** Sheriff Tony Skinner
 - **Deliberation Summary:** Sheriff Skinner explained the police pension calculation structure and the mechanics of the DROP program, noting it has been active for six

years with only four participants, is revenue-neutral to the county, and aids in retaining experienced law enforcement officers. Proposed removing the 3-year sunset clause to make it permanent. Legal counsel and council noted technical discrepancies regarding hire dates (pre- vs. post-October 2010 caps at 32 vs. 26 years).

- **Action & Vote: Tabled** until the June meeting to correct statutory language (Passed Unanimously).
 - **01:19:16 Ordinance 2024-008: Salary Ordinance Repeal and Replace (Second Reading & Amendments)**
 - **Sponsor / Presenter:** Councilman Bill Hughes / Auditor Staff
 - **Deliberation Summary:** Councilman Hughes introduced written amendments to Section 3 (clarifying that line items pertain to positions, not specific individuals) and Section 7 (governing the backfilling process, requiring no rate/title changes and attaching the Personal Information Form). Extensive discussion regarding employee payout offsets, insurance termination dates, and the handling of new employee paperwork.
 - **Action & Vote:** Amendments **Approved** (Passed Unanimously); Ordinance adopted as amended (Roll Call: 7 Yes, 1 No [Webb]).
 - **01:35:59 Ordinance 2024-012: Treasurer<U+2019>s Mobile Home Title Transfer Permit Fee**
 - **Sponsor / Presenter:** Kathy Butterfield (Treasurer)
 - **Deliberation Summary:** Second reading of an ordinance establishing a fee for mobile home title transfer permits. The Treasurer presented survey data from 20-25 Indiana counties showing a going rate between \$15 and \$20, noting it helps offset staff time spent on frequent corporate/LLC transfers. Debate ensued regarding potential impacts on vulnerable mobile homeowners vs. out-of-state corporate park owners.
 - **Action & Vote:** Motion to amend the fee from \$15 to \$20 **Approved** (Roll Call: 4 Yes, 4 No - broken by President's vote / passed). Ordinance adopted as amended at \$20 (Roll Call: 7 Yes, 1 No [Webb]).
 - **01:55:21 Code of Conduct Committee Review**
 - **Sponsor / Presenter:** Councilman Eugene / Committee
 - **Deliberation Summary:** Presentation of a draft Council Code of Conduct for first reading/review. Discussion covered censure procedures, definitions of disrespectful conduct, and personal motives. No vote was taken; action was deferred to the June meeting.
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5. Open Public Comment / Citizen Forum

- No members of the public signed up or spoke during the general citizen forum. *(Note: Public comments were integrated into specific agenda items such as the tax abatement, DROP program, and fee discussions).*

6. Administrative Updates & Adjournment

- **Board Appointments:**
 - Two Republican openings on the **Civic Center Authority Board** (terms starting August 1st; applications to be solicited by Kyle).
 - Library board appointments (Muncie Library and Yorktown Library boards requiring political balance) discussed; to be voted on in June.
- **Old Business / Administrative Reports:**
 - **Salary Study Update:** Finance committee met with consultants and will schedule a dedicated special meeting to review leveling and salary study results. Guidance for departmental budget submissions (due June 30th) was discussed regarding salary line items and central funding pools.
 - **EMS Update:** EMS department reported a successful open house at Station 4 during EMS week with over 100 attendees.
 - **Sheriff Update:** Noted federal inmate population in the jail has reached 45.
- **Adjournment:**
 - Next regular meeting scheduled for **Tuesday, June 25, 2024, at 9:00 AM.**
 - **Action & Vote:** Motion to adjourn **Approved by Voice Vote 02:33:30.**

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